

SENATE BILL 1490

By Haile

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7; Title 11; Title 12; Title 29
and Title 43, relative to local historical boards.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 11, Part 1, is amended by adding the following as a new section:

(a) As used in this section, unless the context otherwise requires:

(1) "Crops" mean any plants, or parts of plants, grown from the soil through cultivation for commercial or other purposes, to be offered for sale or used for consumption;

(2) "Farmer" means a person engaged in the practice of growing crops or harvesting naturally grown products of the soil to be sold or consumed; and

(3) "Local historical board":

(A) Means a governmental entity established by state and local law authorized to oversee and promote the preservation of historic sites and structures within its jurisdiction, that receive assistance from the Tennessee historical commission to establish their own programs, and that operate under ordinances that provide an additional layer of protection and design review for designated historic properties or districts; and

(B) Includes a local historic preservation commission.

(b) Notwithstanding this part to the contrary, local historical boards are authorized to contract with farmers to:

(1) Farm crops on land that is part of a historical site if such land is comprised of five (5) or more contiguous acres; and

(2) Harvest hay and other such naturally grown products of the soil on land that is part of a historical site if the land is comprised of fewer than five (5) contiguous acres.

(c)

(1) All proceeds received by local historical boards under subsection (b) must be used for the preservation of historic sites and structures managed by such boards.

(2) Local historical boards shall submit an annual report no later than December 31 of each year to the Tennessee historical commission that includes detailed information about all contracts entered into under this section for the calendar year and how the proceeds from the contracts were used.

(d) The Tennessee historical commission, with the assistance of the department of agriculture, shall develop contracts for use by local historical boards when entering into agreements under this section, pursuant to the authority granted the commission in § 4-11-103.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.